



POLICE DEPARTMENT

April 27, 2026

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In the Matter of the Charges and Specifications :

- against - :

Police Officer Franklin Garrido :

Tax Registry No. 970356 :

PBMN Community Response Team :

Case No.

C-035796

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

Dana Vincent, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent:

Stuart London, Esq.
Martinez & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer Franklin Garrido, on or about June 13, 2024, at approximately 2107 hours, while assigned to the Manhattan North Specialized Unit Community Response Team and on duty, in front of 2568 7th Avenue, New York County, abused his authority as a member of the New York City Police Department, in that Officer Garrido questioned two passengers of a stopped vehicle without sufficient legal authority.

P.G. 212-11, Page 4, Paragraph 5 LEVEL 1 INVESTIGATIVE
ENCOUNTER

P.G. 212-11, Page 4, Paragraph 11 LEVEL 2 INVESTIGATIVE
ENCOUNTER

2. Police Officer Franklin Garrido, on or about June 13, 2024, at approximately 2107 hours, while assigned to the Manhattan North Specialized Unit Community Response Team and on duty, in front of 2568 7th Avenue, New York County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Officer Garrido interfered with **Complainant's** use of a recording device without sufficient legal authority.

A.G. 304-06, Page 1, Paragraph 1 PROHIBITED CONDUCT

P.G. 200-02 MISSION, VISION AND
VALUES OF THE NYPD

A.G. 304-21, Page 1, Paragraph 1(a) INTERFERENCE WITH
RECORDING DEVICE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on March 19, 2026.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The

Civilian Complaint Review Board ("CCRB") did not call any witnesses, but offered

Respondent's body-worn camera ("BWC") footage from the incident. Respondent called Police

Officer Arhenis Lopez Estevez as a witness and testified on his own behalf. A stenographic

transcript of the trial record has been prepared and is available for the Police Commissioner's

review. Having evaluated all of the evidence in this matter, I find Respondent Guilty of Specifications 1 and 2 and recommend a penalty of the forfeiture of 20 vacation days.

ANALYSIS

The following facts are undisputed. On June 13, 2024, Respondent and his partner, Police Officer Arhenis Lopez Estevez, who were both assigned to the Patrol Borough Manhattan Community Response Team (hereinafter “CRT”) were on routine patrol in an unmarked RMP, in the vicinity of 2568 7th Avenue. At approximately 2100 hours, Respondent and Officer Lopez Estevez observed Complainant’s¹ vehicle double parked and with windows that appeared to be tinted darker than the legal limit, so they drove toward said vehicle to address the VTL violations. As Respondent and Officer Lopez Estevez approached Complainant’s car, they observed two unidentified male passengers seated in the vehicle— one in the front passenger seat and another directly behind him in the rear passenger seat.

Respondent exited the RMP and walked toward the rear passenger side of Complainant’s vehicle. Upon approaching, a fellow officer announced over his radio, “three people in there,” and “one in the back ducked down.” As Respondent approached the vehicle, the rear passenger opened the door and disposed of a small object on the ground outside the car. The rear door remained open as Respondent illuminated his flashlight and initiated a conversation with the rear passenger.

Another officer approached the window opposite Respondent and gestured to an open container wrapped in a brown paper bag in the center console next to the rear passenger. The officer asked the passenger what was in the container. Respondent also inquired about the

¹ Complainant’s identity is known to the Tribunal. However, since he did not testify at the hearing his name was intentionally omitted for anonymity.

container, and the rear passenger disclosed that it was a canned margarita. Respondent then acknowledged that the rear passenger also had a marijuana cigarette. Respondent stated, "Everything's good, my man." Respondent followed up by asking if the rear passenger had any weapons on him. The rear passenger replied, "No, sir," as he draped his arm over his waistband. Respondent then specifically asked the passenger if he had "knives or needles," and the rear passenger shook his head, no.

All the occupants, including Complainant, were then ordered out of the vehicle. When the front passenger, who had been interacting with a different officer, exited the vehicle, Respondent asked him if he had any weapons on him, again referencing knives and needles in particular. The front passenger said, "Nah," as he shook his head and raised his arms with his palms facing outward. Respondent asked what his gesture meant. The front passenger questioned Respondent's confusion and vice versa. The rear passenger then exited the vehicle. Respondent and the two passengers walked toward the trunk. There, Complainant vociferously objected to the search of his vehicle. As another officer placed her hands on Complainant's shoulder, Respondent walked toward him and touched his arm.

While standing at the rear of the vehicle, Complainant removed his cell phone from his pocket, raised it and, through the rear window, pointed it in the direction of the officer who was searching the interior his vehicle. The cellphone's flashlight was illuminated. Respondent took Complainant's phone out of his hand and placed it on the hood of the unmarked RMP.

The issues in this case are: (1) whether Respondent questioned the unidentified passengers of the stopped vehicle without sufficient legal authority; and (2) whether Respondent interfered with Complainant's use of a recording device without sufficient legal authority. What

follows is a summary of the evidence presented by the parties that is relevant to the disputed facts.

CCRB did not call any witnesses at this hearing, instead presenting footage from Respondent's BWC. (CCRB Ex. 1) The following is a summary of the relevant section recorded by Respondent's BWC:

00:00-01:04 Respondent arrives on scene and exits the passenger seat of an unmarked RMP. He activates his BWC as he approaches the right side of the stopped vehicle. All of the vehicle's windows are open. The rear passenger opens the door closest to him and bends over to dispose of something off-screen. As the rear passenger leans over, another officer indicates over Respondent's radio that there are "three people in there," and "one in the back ducked down." Respondent places his hand on the open door's frame and the rear passenger sits upright, looking toward Respondent.

01:05-01:27 Respondent turns on his flashlight and aims it at the rear passenger. Respondent greets him. The rear passenger raises both of his hands before settling them on his thighs, his palms facing downward. Respondent asks, "You good, my heart?" The rear passenger responds in the affirmative. Respondent replies, "Bro, you can't be smoking in the 'v,' playa." The rear passenger raises his left hand and says, "My fault." Respondent then requests his identification, and the rear passenger rummages through his pockets.

00:58-01:40 Another officer greets the rear passenger from the window opposite Respondent. The officer aims his flashlight at a paper bag on the center console next to the rear passenger and asks him, "What's in that?" The rear passenger rips open the paper bag and corrects Respondent when he surmises that the can is a beer, indicating that the can is a margarita.

01:41-01:51 Respondent states, "My boy getting litty back here. My boy got the blunt, the margarita." The rear passenger raises and extends his arms outward and discloses that they "just came out the store, bro. Come on." The rear passenger places his hands back on his thighs. Respondent replies, "I hear you, bro. Everything's good, my man."

01:52-01:58 Respondent asks, "Any weapons on you, bro?" The rear passenger extends his arm outward and responds, "No, sir." He then lays his right arm over his waistband. Respondent continues, "No knives? Needles? Nothing like

that?" The rear passenger shakes his head, and Respondent states, "Alright, lets hop 'em out."

01:59-03:14

An officer orders Complainant out of the vehicle. Complainant states that he recently underwent surgery and needs "to drink this now. No, I need to, because I took my medicine." He reiterates his need to drink the beverage as he exits the vehicle. The rear passenger rests his right hand against his left bicep. He then asks if he can retrieve his marijuana cigarette. Respondent indicates that he thought the rear passenger had discarded the marijuana cigarette. The rear passenger leans over and picks up the marijuana cigarette before placing it on the center console.

03:15-03:29

The front passenger exits the vehicle. Respondent turns his attention to the front passenger and asks, "Yo, any weapons on you? No knives? Needles?" The front passenger says, "Nah," as he shakes his head and raises his arms with his palms facing outward. Respondent asks what his gesture means. The front passenger asks, "What do you mean?" Respondent mimics the gesture and explains, "You went like this." The rear passenger intervenes, indicating that he was putting his hands up. Respondent states, "Oh, okay. Well, I don't know."

03:30-03:45

Respondent instructs the occupants to migrate toward the back of the vehicle. The occupants stand against the trunk. Complainant faces away from Respondent as he states to other officers, "It's too many of us? It's three of us. What do you mean it's too many of us? Because he's talking about it's too many of us. Too many of us, how? Where? Where? Too many of us where?"

03:46-03:53

Respondent walks up to Complainant. He reaches out and touches Complainant's back as Complainant indicates that he does not consent to any searches. Respondent then taps his left shoulder and states, "Yo, playa. Yo," as another officer places her hand on his right shoulder. Complainant turns around and shakes his head, stating, "Nah." The other officer places her hand on his right bicep.

03:54-03:57

While pointing toward the officers near the left side of his vehicle, Complainant continues, "Look what he's doing. He's searching my car." The other officer grips his right wrist as Complainant reaches with his right hand for his phone in his pocket, removes it, and transfers it to his left hand.

03:58-04:04

Complainant aims his phone toward the officers searching his vehicle and reiterates, "Look what he's doing. He's searching my car, bro."

Respondent takes the phone out of his hand places it on the hood of the unmarked RMP with its screen facing downward and its flashlight illuminated. Respondent explains, "I don't want nothing in your hands. Relax."

04:04-04:43

Complainant questions the officers' ability to search his vehicle without his consent. Respondent and additional officers urge him to relax and comment on the volume of his voice.

At trial, Police Officer Arhenis Lopez Estevez testified that on the date in question, he was the operator of the unmarked RMP that he and Respondent were in. He noted that there was a second RMP accompanying them on patrol. Officer Lopez Estevez relayed that he initiated the vehicle stop upon observing Complainant's vehicle double parked with tinted rear windows. Upon approaching the vehicle, he recalled smelling marijuana but did not observe it. Officer Lopez Estevez explained that when he heard another officer identify the open container of alcohol, he knew the officers had the authority to search the vehicle for more open containers. (Tr. 19-21)

Respondent testified that prior to approaching the vehicle, he heard another officer state over his radio, "They're ducking. They're ducking." Respondent elucidated that upon approaching the vehicle, he observed the rear passenger open the door and dispose of a lit marijuana cigarette. Respondent recounted discussing the open container and marijuana cigarette with the rear passenger. He stated that his interaction with the passengers was focused on the rear passenger until he asked the front passenger about weapons. (Tr. 32-34)

On cross-examination, Respondent clarified that he inquired about weapons based on: (1) what his fellow officer relayed over his radio, and (2) the rear passenger placing his arm over his waistband during their initial discussion. Respondent indicated that when he first observed the rear passenger, his hands were raised, visible, and empty. He further noted that the rear

passenger was not evasive during their interaction; rather, he was forthcoming about the margarita and marijuana. Respondent verified that when he stated, "everything is good," after asking the rear passenger about the alcohol and marijuana, he meant it, but he also acknowledged that he then asked the rear passenger about weapons. Respondent conceded the absence of indicia that the rear passenger was armed. He asserted that the rear passenger was not evasive in his response, made no sudden or furtive movements, and that he did not detect any bulges on his clothing that would suggest to Respondent that he was armed. According to Respondent, his fellow officers then ordered the occupants to exit the vehicle and all three complied. (Tr. 42, 48-53, 56-59)

Respondent characterized Complainant as generally, "a little loud" and "a little combative." He acknowledged that Complainant pulled out his phone to record the search. After Complainant began recording, Respondent admitted that he took the phone out of his hand. He indicated that based on his training and experience, Members of Service never want "anybody" to wield "anything in their hands." Respondent reasoned that individuals could disguise weapons as mock phones or use legitimate phones as weapons. He added that a phone, absent any alterations, could still be a threat if thrown or wielded like "brass knuckles." Respondent's rationale for taking Complainant's phone at that time was for purported "safety reasons." (Tr. 34-36, 68-70, 72)

On cross-examination, Respondent further elaborated that he perceived the phone's flashlight was interfering with the officers' investigation and ability to perform their job. He explained that a flashlight shone in the eyes of an officer could obstruct their vision. Respondent also emphasized that it was dark outside and the contrast between the darkness and the light made the light brighter than usual. As a result, Respondent concluded that he had to remove the

phone from Complainant's hand, but he placed the phone on the hood to ensure that the phone could continue recording. Respondent testified:

The reason why I testified that it continued recording because you can see when the driver removes the phone or call it an object from his pocket, the flashlight comes on, right, and when I removed from his hand and put it on the hood of my car where it's safe, the flashlight is still on. So, the recording wasn't impeded. (Tr. 65)

Specification 1: Unlawful Questioning

Respondent is charged with questioning Complainant's passengers without sufficient legal authority. Respondent did not deny questioning the two passengers. The issue before the Tribunal is whether Respondent's inquiry was justified under the circumstances. Based upon the credible, relevant evidence adduced at trial, I find that it was not.

The framework established in *People v. De Bour*, 40 N.Y.2d 210 (1976), which is incorporated by reference in Patrol Guide 212-11, sets out four levels of police-citizen encounters, outlining the escalating measures of suspicion necessary to justify each. During a Level 1 encounter or "request for information," a police officer may approach an individual if he or she has an "objective credible reason" to do so. P.G. 212-11 specifically states that this type of encounter does not require any suspicion of criminal activity, emphasizing:

The objective is to gather information and not to focus on the person as a potential suspect. A police officer may seek information related to the reason(s) the person was approached, such as the person's name, address and destination, if those questions are related to the objective credible reason for the approach. The officer may not ask accusatory questions.

However, "[o]nce the officer asks more pointed questions that would lead the person approached reasonably to believe that he or she is suspected of some wrongdoing . . . the officer is no longer merely seeking information." *People v. Hollman*, 79 N.Y.2d 181, 185 (1992), citing *De Bour*, 40 N.Y.2d at 223. This "common-law right of inquiry, a wholly separate level of

contact, is ‘activated by a founded suspicion that criminal activity is afoot’” *See id.* at 184, quoting *De Bour*, 40 N.Y.2d at 223.

According to P.G. 212-11, “upon a founded suspicion of criminality, the officer may approach a person to ask accusatory questions . . . The officer may engage protective measures, when he or she has a reasonable concern for his or her safety.” However, New York courts have characterized “a police officer’s question as to whether an individual has a weapon as a common-law inquiry requiring founded suspicion of criminality.” *See People v. Garcia*, 20 N.Y.3d 317, 322 (2012), citing *People v. Ward*, 22 A.D.3d 368 (1st Dept. 2005); *People v. Stevenson*, 7 A.D.3d 820, 821 (2d Dept. 2004).

The validity of the stop of Complainant’s vehicle was uncontested at trial. Therefore, the only issue for the Tribunal to address is Respondent’s conduct as it relates to the questioning of the passengers. Prior to his interaction with the rear passenger, Respondent observed two VTL infractions, but he had no particularized reason to believe that anyone in the vehicle had a weapon or engaged in criminality. Upon further investigation and conversation with the rear passenger, Respondent learned that he discarded a lit marijuana cigarette and had an open container of alcohol in the center console of the car. However, as Respondent testified, “alcohol and weapons are two different things” (Tr. 53), and this new information did not raise his level of suspicion sufficient to justify an inquiry about weapons. Once Respondent asked pointed questions such as “do you have any weapons on you,” or “do you have any knives or needles?,” he was no longer merely seeking information. This became a common-law inquiry that needed to be supported by a founded suspicion that criminality was afoot.

At trial, Respondent reasoned that he inquired about weapons because he heard another officer state, “[t]hey’re ducking. [t]hey’re ducking,” over his radio as he was approaching the

vehicle. In addition, he highlighted the rear passenger placing his hand over his waistband. At the one-minute mark, CCRB's Exhibit 1 captures an officer announcing over the radio, "one in the back ducked down." Almost simultaneously, the rear passenger can be seen ducking down. Respondent, however, testified that he observed the rear passenger attempting to extinguish a marijuana cigarette on the ground, immediately quelling any suspicions about why he might be "ducking" down or what he was doing.

Once he was next to the rear passenger side of the vehicle, Respondent could clearly see inside of the vehicle. The windows were open, there were no bags or containers that could conceal a weapon, and Respondent illuminated the interior with his flashlight. Respondent testified that he did not observe any bulges on the rear passenger's clothing and did not believe he was concealing anything. The passenger's hands were visible at all times. Respondent added that he did not observe the rear passenger making any furtive or suspicious movements during their interaction. The rear passenger was also candid about the canned margarita and the marijuana cigarette. Respondent's testimony regarding his observations on the night in question is insufficient to give rise to the common-law right of inquiry.

According to Respondent, he also inquired about weapons because the rear passenger placed his hand over his waistband. However, when viewing CCRB's Exhibit 1, the recording captures the rear passenger draping his arm over his waist after Respondent asked him about weapons. Moreover, the rear passenger's hand gesture was not done in a manner that obscured what was underneath his hand. This Tribunal can therefore not credit Respondent's testimony when it directly contradicts what is captured on his BWC footage.

Similarly, Respondent had no reason to ask the front passenger about weapons. Respondent did not address the front passenger until he stepped out of the car and the first thing

that he did was inquire about weapons. His interaction with the front passenger was so limited that, absent any communication with his fellow officer, Respondent could not articulate any particularized facts to support his second weapons inquiry. Based upon the credible, relevant evidence, I find that Respondent's questioning of the two passengers in Complainant's vehicle was not justified under the circumstances.

Accordingly, I find Respondent Guilty of Specification 1.

Specification 2: Interference with a Recording Device

Respondent is charged with interfering with Complainant's use of a recording device without sufficient legal authority. Respondent admitted that he seized Complainant's phone and that he knew Complainant was recording at the time the device was seized. The question for the Tribunal is whether Respondent interfered with Complainant's ability to record with no legitimate basis to do so. I find that CCRB has met its burden of proof and established by a preponderance of the credible evidence that Respondent interfered with Complainant's use of a recording device without sufficient legal authority.

Administrative Guide 304-21 states, "[i]ndividuals have a right to lawfully observe and/or record police activity including, but not limited to detentions, searches, arrests or uses of force..... This right to observe and/or record police action can be limited for reasons such as the safety of officers or other members of the public, or when a violation of law is committed by the individual(s) who are observing/recording." A.G. 304-21 further instructs that officers cannot "[s]eize property or instruments used by an individual to record police activities[.]" In addition, "[w]hen feasible, members of the service should issue warnings to the civilian observer/recorder and direct the individual to a less-intrusive location to continue recording safely." *See* New York

City Police Academy Training Memo No. 27-18 (Aug. 2018); *see also* Legal Bureau Bulletin, Vol. 54, No. 1 (Sept. 2025).

This Tribunal is unpersuaded by Respondent's testimony that he seized Complainant's phone to ensure officer safety and prevent the obstruction of law enforcement activity.

Respondent's reasons for seizing Complainant's phone lacked the ring of truth and simply did not hold up against uncontroverted video evidence. At trial, Respondent initially testified that he seized Complainant's phone to ensure officer safety. He reasoned that Complainant could use the phone as a weapon, whether it was a weapon disguised as a phone or a legitimate phone.

However, Respondent did not detail any behavior that suggested Complainant intended to use the phone as a weapon. Based upon the BWC footage received in evidence, it does not appear that Complainant wielded the phone in a manner that threatened the use of force. In addition, Complainant did not aim the phone at anyone in a manner that suggested he would throw the phone at them.

It is worth emphasizing that Complainant had a second cell phone in his pocket which he pulled out a little over a minute after Respondent seized the first phone. (CCRB Ex. 1 at 05:44) Complainant did not, however, attempt to use the second phone to record the police interaction. It is of note that when Complainant did not use the second phone to record, Respondent did not try to take this phone from Complainant's hand. When Respondent was asked why he did not take Complainant's second phone away from him, Respondent replied, "he'd probably pull out another phone for all I know." (Tr. 36) The Tribunal is not satisfied with Respondent's explanation and finds it defies logic or common sense.

Respondent also explained that the flashlight from Complainant's first cell phone could obstruct or affect the officers' ability to perform their duties because it could obstruct their

vision. He emphasized that it was dark outside and the contrast between the darkness and the light made the flashlight on Complainant's phone appear brighter than usual. However, Respondent and his fellow officers had flashlights that were illuminated throughout the encounter and that did not seem to obstruct their ability to perform their job. In addition, Respondent could have verbally instructed Complainant to record without his flashlight on or directed him to record in a less intrusive manner.

For the foregoing reasons, I find Respondent Guilty of Specification 2.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history was also examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

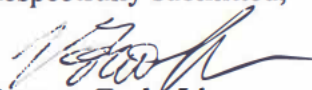
Respondent was appointed to the Department on November 16, 2020. On his two most recent annual performance evaluations, Respondent twice received the highest rating of "Exceptional." He also has no formal disciplinary history. Respondent has been found Guilty of questioning passengers in a vehicle without sufficient legal authority and interfering with Complainant's use of a recording device. CCRB recommended the presumptive penalty of three days for Specification 1 (wrongful questioning) and the presumptive penalty of twenty days for Specification 2 (interference with the use of a recording device). (Matrix at pp. 27, 29) They further proposed that the penalty days run consecutively for a total of 23 days because, in their

view, this was a case of Respondent “overreaching” and abusing his authority, as well as two separate violations of the mandates of the Patrol Guide.

This Tribunal agrees with CCRB that the presumptive penalty for each specification is appropriate because there were no mitigating factors presented in the record to warrant a departure from the Disciplinary Guidelines. However, I disagree that the facts and circumstances of this case were so egregious to necessitate a consecutive penalty. Because these specifications stem from the same incident, I find that the presumptive penalties for each specification, to run concurrently, fairly and adequately address Respondent’s misconduct.

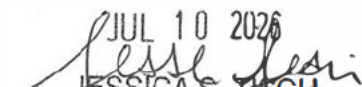
I therefore recommend the forfeiture of twenty vacation days.

Respectfully submitted,



Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPROVED

JUL 10 2026

JESSICA S. HSICH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER FRANKLIN GARRIDO
TAX REGISTRY NO. 970356
DISCIPLINARY CASE NO. C-035796

Respondent was appointed to the Department on November 16, 2020. On his three most recent performance evaluations, he was twice rated “Exceptional” for 2023 and 2024, and received a rating for 4.0 rating of “Highly Competent” in 2022.

Respondent has no formal disciplinary history.

For your consideration.

Vanessa Facio-Lince
Assistant Deputy Commissioner Trials